



Appeal Decision

Site visit made 7 September 2026

by **B Plenty BSc (Hons) DipTP MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 23 September 2026

Appeal Ref: 6009281

Willow Tree Farm, Denham Lane, Chalfont St Peter SL9 0QW

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant outline planning permission.
 - The appeal is made by Sun Sass against the decision of Buckinghamshire Council.
 - The application Ref is PL/25/5959/OA.
 - The development proposed is Outline planning application for construction of up to 4 dwellings (matter to be considered at this stage: access).
-

Decision

1. The appeal is dismissed.

Preliminary Matters

2. The revised National Planning Policy Framework (the Framework) was published in August 2026. Main parties have been provided with the opportunity to comment on the implications of the revisions to their cases. I have taken account of the revised Framework, and any comments made, in my determination of the appeal.
3. The appeal proposal is made in outline form with all matters reserved other than access. Despite this, the submitted layout plan shows one way that the scheme could be developed, I therefore intend to treat details of layout as indicative only. Accordingly, I shall consider this appeal in those terms.

Main Issues

4. The main issues are:
 - Whether the proposed development would be inappropriate development in the Green Belt and its effect on openness taking into account the Framework and any relevant development plan policies, and
 - whether any harm is clearly outweighed by other considerations, so as to amount to very special circumstances to justify it.

Reasons

Inappropriate development – Green Belt considerations

5. The development plan for the district includes the Chiltern District Local Plan [1997, consolidated 2007 and 2011] (LP). LP Policy GB2, with respect to development in the Green Belt, states that most development in the Green Belt is inappropriate. At subsections (a) to (f) the policy sets out the types of development that would be regarded as not inappropriate within this context. However, this

policy is in part inconsistent with the Framework, as development regarded as 'not inappropriate' in the Framework is broader than that set out at LP policy GB2 and this policy is therefore only afforded moderate weight.

6. The Framework explains that whilst development plan policies should not be given reduced weight simply as they were adopted prior to the publication of the Framework, policies which are materially inconsistent with the national decision-making policies of the Framework should be given very limited weight. As such, where relevant I have taken into consideration the requirements of the Framework when considering whether the proposal would be regarded as inappropriate development.
7. The Framework attaches great importance to the Green Belt, the essential features of which is its openness and permanence. Policy GB6 establishes that new development would be inappropriate unless it meets a listed category of development at policy GB7, which defines development that should not be regarded a harmful to the Green Belt. Policy GB7(1) part (e) refers to the redevelopment of previously developed land (PDL) and part (g) relates to other development including, among other matters, grey belt land.

Previously developed land GB7(1)(e)

8. Policy GB7(1)(e) supports the redevelopment of PDL provided it would not cause substantial harm to the openness of the Green Belt. PDL is defined in the glossary as including land which has been lawfully developed and is or was occupied by a permanent structure and any fixed surface infrastructure associated with it. It includes the curtilage of the developed land, although it should not be assumed that the whole of the curtilage should be developed.
9. The appeal site consists of a parcel of land to the side of a dwelling and a stable building. The site consists of a manège and part of a large residential garden. The manège can be regarded as fixed surface infrastructure installed in association with the adjacent stables. It is enclosed by post and rail wooden fencing but is otherwise open. As such, the appeal site is not occupied by structures, but only an area of hardstanding that appears to occupy around a third of the entire site. As only part of the site can be regarded as previously developed, the site as a whole is not regarded as PDL.
10. The proposal would include the erection of buildings and associated hardstanding that would, in combination, significantly increase the scale of development on site. In visual terms the site is currently open and devoid of buildings. Its openness, through an absence of built form, can be perceived from outside the site from the adjacent highway, the public footpath to the side of the site and in wider views from the cemetery, beyond the footpath. As such, it would both spatially and visually erode the sites existing openness, resulting in moderate harm to the Green Belt.
11. Therefore, even if the entire site were regarded as PDL, the scheme would significantly increase the scale of development on site and cause harm to the openness of the Green Belt, failing to satisfy policy GB7(e).

Other 'not inappropriate' development GB7(1)(g)

12. Policy GB7(1)(g) supports other development in the Green Belt which meets all provisions of sections (i-iv). To comply with subsection i) requires the site to be regarded as grey belt land and for its development to not fundamentally undermine the purposes (taken together) of the remaining Green Belt across the plan area. At ii) it requires that there is evidenced unmet need for the type of development proposed, and at iii) that the development would be in a sustainable location. Subsection iv) relates to major development, which is not relevant in this case.
13. The purposes of the Green Belt are defined in the Framework's 'policy making' policies of policy GB2. This states that five purposes are to (a) check unrestricted sprawl, (b) prevent neighbouring towns merging, (c) assist in safeguarding the countryside from encroachment, (d) preserve the setting and special character of historic towns and (e) to assist in urban regeneration by encouraging the recycling of derelict and other urban land.
14. With regard to the first test of GB7(1)(g)(i) the Glossary of the Framework defines grey belt as Green Belt comprising of previously developed land and/or any other land that, in either case, does not strongly contribute to any purposes (a), (b) or (d) of policy GB2, and therefore applies two tests.
15. As discussed above, I have found that the site cannot be regarded as PDL. In terms of the second test the Council's recent Draft Green Belt Assessment [2026] provides a useful tool in assessing the contribution land makes to the purposes of the Green Belt. The Assessment, although in draft form, shows that Denham Lane, adjacent to the appeal site, acts as a clear delineated boundary between the built-up area of the settlement and the Green Belt. Most pockets of land to the east of the town have assessment areas that are deemed to either make a strong or moderate contribution to preventing urban sprawl, with the area of the appeal site deemed to make a strong contribution. Despite its draft status it seems reasonable for it to conclude that the site makes a strong contribution to purpose 'a' due to its proximity to the town and the intact nature of the open Green Belt to the north, south and east of the site.
16. The appellant suggests that the Assessment is a broad county-wide assessment that Council should not rely on it to determine the effects of a specific proposal. To that I agree, but equally I find that the site is within an area that is not enclosed by built form and connects to other Green Belt to its north, south and eastern boundary, therefore being at risk of encroachment from the adjacent town.
17. The layout of the proposal, whilst indicative only, shows the rectangular site accommodating four large footprint dwellings that are stacked with two set in backland plots. Adjacent development on the northeast side of Denham Lane is undeveloped save for 'Willow Tree Farm' and its associated stables. The cemetery, whilst not 'countryside', is a use regarded as appropriate in the Green Belt by virtue of GB7(1)(f)(iv). The next development to the north is Roberson School, but this is separated from the appeal site by several fields and fails to have a material bearing on the immediate context of the site. As such, the size and shape of the site shows a form of development that would intrude into the Green Belt away from the highway, further increasing the resultant sense of encroachment.

18. Accordingly, the appeal site is not within a continuous row of development and would not act as an infill plot. Instead, it would represent development beyond the village envelop on land which is most vulnerable to encroachment into the open countryside. Consequently, the site performs strongly with respect to guarding against encroachment and thus cannot be regarded as grey belt land. Accordingly, the site fails to meet the exemption listed at policy GB7(1)(g)(i).
19. Any compliance with the remaining criteria of policy GB7(1)(g) would not alter the above findings, meaning that the proposal is regarded as inappropriate development in the Green Belt.

Other considerations

20. The Council cannot demonstrate it has a 5-year supply of housing, with a current provision of only 0.75 years, as of March 2024. As such, the proposal would meet an unmet need for housing. Policy H07 of the Framework requires substantial weight to be afforded to the benefits of providing homes that contribute towards meeting the evidenced accommodation needs of the community.
21. Chalfont St Peter and Gerrards Cross is a large settlement surrounded by the metropolitan Green Belt. The site is well located with bus stops within a short walk, providing services to destinations including Slough. Chalfont St Peter High Street is also within a 15-minute walk, providing future occupiers of the site with good access to goods and services. Consequently, the site is deemed to be in an accessible location, which also weighs in favour of the scheme.
22. The proposed dwellings would deliver both economic benefits during construction and for the local community once occupied by future occupiers spending in the local area, attracting further support for the proposal.

Green Belt balance

23. Policy GB6 of the Framework requires substantial weight to be given to any harm to the Green Belt, including harm to openness. Furthermore, Policy GB7 states that inappropriate development is, by definition, harmful to the Green Belt and should not be approved except in very special circumstances. Such circumstances will not exist unless the potential harm to the Green Belt by reason of inappropriateness, or any other harm, is clearly outweighed by other considerations.
24. The Framework, at policy H07, requires substantial weight to be given to the benefits of providing homes which will contribute towards meeting the evidenced accommodation needs of the community. This is especially pertinent in a district where the Council is not meeting its required 5-year supply of housing land, with a provision of only 1.98 years. In this instance, the benefits of additional housing, in a sustainable location, weighs substantially in favour of the proposal. Nonetheless, whilst the provision of any new dwellings within the district would be an important benefit of the proposal, such provision is only of moderate significance being for only 4 dwellings.
25. The proposal would result in encroachment into the Green Belt, harming the Green Belt and further harm would be caused by its adverse effect on the openness of this relatively exposed site, in conflict with policies GB6 and GB7 of the Framework. The economic and social benefits, as identified as important at

policies E2 and H07, can only be deemed to be of moderate to limited support in favour of the scheme although it is recognised that its locational benefits also weigh moderately in support of the proposed development.

26. Accordingly, the harm to the Green Belt is not clearly outweighed by the other considerations identified and therefore the very special circumstances necessary to justify the development do not exist. Accordingly, the proposal fails to adhere to the local and national Green Belt policies I have already outlined. Consequently, the proposal would be inappropriate development and as such harmful to the Green Belt. The proposed dwelling would therefore be contrary to LP Policy GB8 and the Framework, which seek to resist most development in the Green Belt as inappropriate development.

Planning balance

27. I have concluded that the proposal would conflict with development plan LP policy GB2. The proposal would therefore be at odds with the spatial strategy of the development plan and would conflict with the development plan when taken as a whole. Planning law requires that applications for planning permission be determined in accordance with the development plan unless material considerations indicate otherwise. The material considerations in this case, including the Framework, do not indicate that a decision should be made other than in accordance with the development plan.

Conclusion

28. For the above reasons the appeal is dismissed.

B Plenty

INSPECTOR